

IN THE COUNTY COURT IN AND FOR MANATEE COUNTY, FLORIDA
COLONIAL MANOR MHC HOLDINGS, LLC,

Plaintiff,

Case No: 2021CC5737
Civil Division
Landlord/Tenant Action

v.

**BERNICE THERESA LANGFORD, AND
IF DECEASED, ALL UNKNOWN PARTIES,
BENEFICIARIES, HEIRS, SUCCESSORS
AND ASSIGNS OF BERNICE THERESA
LANGFORD AND ALL PARTIES
HAVING OR CLAIMING TO HAVE ANY
RIGHT, TITLE, OR INTEREST IN THE
PROPERTY HEREIN DESCRIBED;
AND ALL UNKNOWN
UNAUTHORIZED OCCUPANTS,**

Defendants.

PLAINTIFF'S MOTION FOR DEFAULT FINAL JUDGMENT OF POSSESSION

Plaintiff, COLONIAL MANOR MHC HOLDINGS LLC, a Foreign Limited Liability Company, moves for entry of a Default Final Judgment of Possession of Plaintiff's complaint in this matter against Defendants Bernice Theresa Langford, and If Deceased, All Unknown Parties, Beneficiaries, Heirs, Successors And Assigns of Bernice Theresa Langford and All Parties Having or Claiming to Have Any Right, Title, or Interest in the Property Herein Described; and All Unknown/Unauthorized Occupants, and as grounds therefore states:

1. This cause for eviction was filed on July 27, 2021, based upon Defendant's nonpayment of rent.
2. Service was effected upon Defendants on August 16, 2021.
3. Defendants failed to deposit into the Court registry the required rent pursuant

to Sections 723.063(2) and 723.061(1)(a), Florida Statutes, or file any pleadings or papers in this action as required by the Florida Rules of Civil Procedure.

4. A MOTION FOR DEFAULT (Eviction) has been forwarded to the Clerk of Court against Defendants.

5. Plaintiff is entitled to judgment for possession of the Property (as defined in the Complaint) against Defendants, and is entitled to the issuance of a Writ of Possession placing Plaintiff in possession of the Property.

WHEREFORE, Plaintiff respectfully requests that this Court enter a default final judgment of possession awarding possession of the Property to Plaintiff and ordering the issuance of a Writ of Possession directing the Manatee County Sheriff to remove said Defendants, any personal property, and all persons claiming by, through, or under Defendants from the Property without further notice or hearing.

Respectfully submitted,

/s/ Charles Lovings
CHARLES LOVINGS, III
FL Bar No.: 0122411
clovings@floridahousinglaw.com
CAROL S. GRONDZIK
FL Bar No.: 0156833
csggrondzik@floridahousinglaw.com
rmsterling@floridahousinglaw.com
Lutz, Bobo & Telfair, P.A.
2155 Delta Boulevard, Suite 210-B
Tallahassee, Florida 32303
(850) 521-0890 - Telephone
(850) 521-0891 - Facsimile
Attorneys for Plaintiff

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true and correct copy of the foregoing has been furnished by U.S. Mail to the following persons on this 31st day of August 2021:

Bernice Theresa Langford,
and If Deceased, All Unknown
Parties, Beneficiaries, Heirs,
Successors And Assigns of Bernice
Theresa Langford and All Parties
Having or Claiming to Have Any
Right, Title, or Interest in the
Property Herein Described
900 9th Avenue, E.
Lot 95
Palmetto, Florida 34221

All Unknown/Unauthorized Occupants
900 9th Avenue, E.
Lot 95
Palmetto, Florida 34221

/s/ Charles Lovings
ATTORNEY